

PREAMBLE

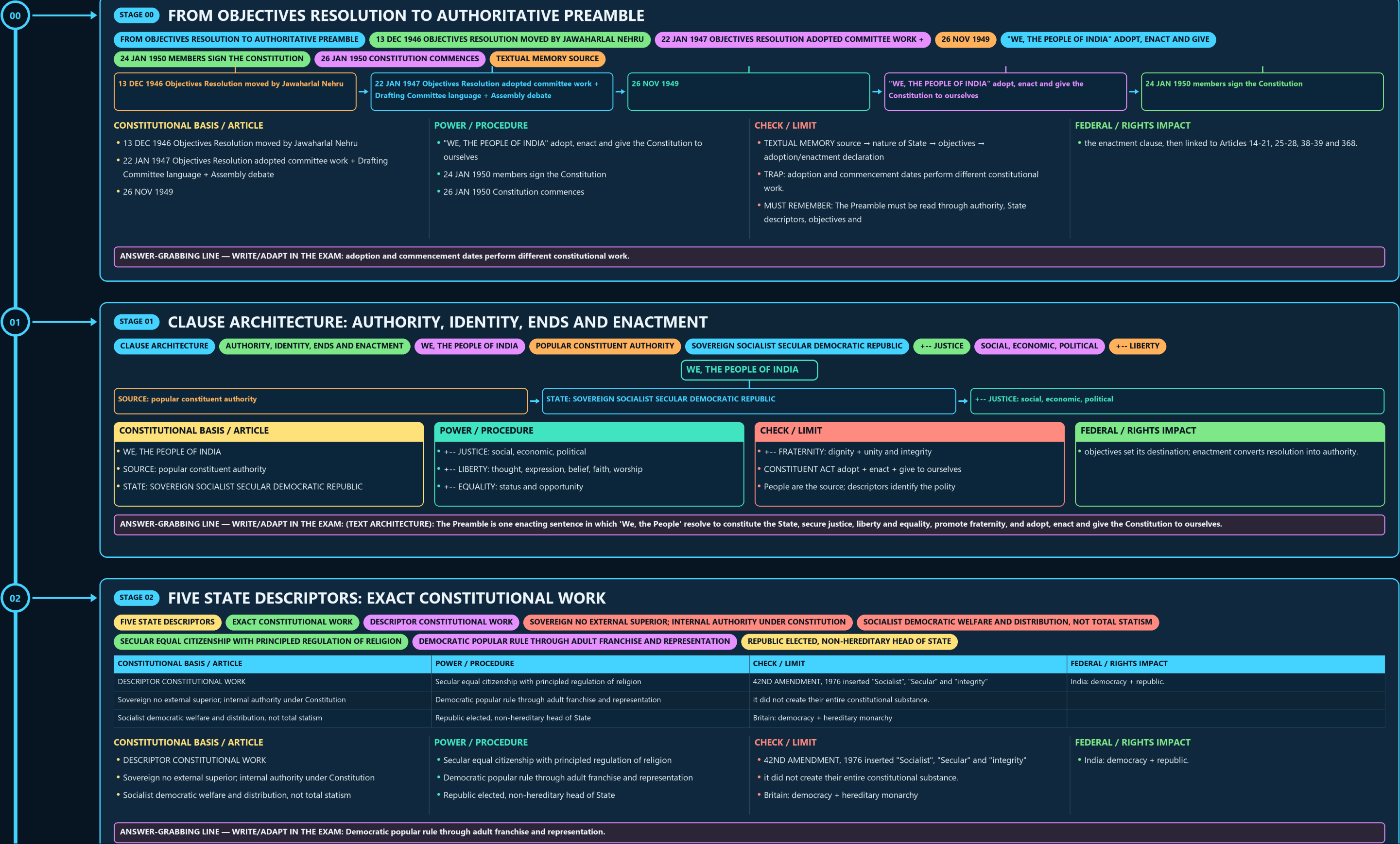
FROM OBJECTIVES RESOLUTION TO → CLAUSE ARCHITECTURE: AUTHORITY, IDENTITY → FIVE STATE DESCRIPTORS: EXACT → JUSTICE, LIBERTY, EQUALITY AND → BERUBARI UNION (1960), KESAVANANDA BHARATI (1973) → AMENDABILITY STOPS AT CONSTITUTIONAL

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g19 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02

FIVE STATE DESCRIPTORS: EXACT CONSTITUTIONAL WORK

FIVE STATE DESCRIPTORS

EXACT CONSTITUTIONAL WORK

DESCRIPTOR CONSTITUTIONAL WORK

SOVEREIGN NO EXTERNAL SUPERIOR; INTERNAL AUTHORITY UNDER CONSTITUTION

SOCIALIST DEMOCRATIC WELFARE AND DISTRIBUTION, NOT TOTAL STATISM

SECULAR EQUAL CITIZENSHIP WITH PRINCIPLED REGULATION OF RELIGION

DEMOCRATIC POPULAR RULE THROUGH ADULT FRANCHISE AND REPRESENTATION

REPUBLIC ELECTED, NON-HEREDITARY HEAD OF STATE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
DESCRIPTOR CONSTITUTIONAL WORK	Secular equal citizenship with principled regulation of religion	42ND AMENDMENT, 1976 inserted "Socialist", "Secular" and "integrity"	India: democracy + republic.
Sovereign no external superior; internal authority under Constitution	Democratic popular rule through adult franchise and representation	it did not create their entire constitutional substance.	
Socialist democratic welfare and distribution, not total statism	Republic elected, non-hereditary head of State	Britain: democracy + hereditary monarchy	

CONSTITUTIONAL BASIS / ARTICLE

• DESCRIPTOR CONSTITUTIONAL WORK

• Sovereign no external superior; internal authority under Constitution

• Socialist democratic welfare and distribution, not total statism

POWER / PROCEDURE

• Secular equal citizenship with principled regulation of religion

• Democratic popular rule through adult franchise and representation

• Republic elected, non-hereditary head of State

CHECK / LIMIT

• 42ND AMENDMENT, 1976 inserted "Socialist", "Secular" and "integrity"

• it did not create their entire constitutional substance.

• Britain: democracy + hereditary monarchy

FEDERAL / RIGHTS IMPACT

• India: democracy + republic.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Democratic popular rule through adult franchise and representation.

03

STAGE 03

JUSTICE, LIBERTY, EQUALITY AND FRATERNITY AS ONE SYSTEM

JUSTICE, LIBERTY, EQUALITY AND FRATERNITY AS ONE SYSTEM

SOCIAL + ECONOMIC + POLITICAL

DIRECTIVE PRINCIPLES AND SOCIAL-REFORM POWERS

THOUGHT + EXPRESSION + BELIEF + FAITH + WORSHIP

RIGHTS, SUBJECT TO CONSTITUTIONAL LIMITS

STATUS + OPPORTUNITY

NON-DISCRIMINATION PLUS CORRECTIVE MEASURES

DIGNITY + UNITY AND INTEGRITY

JUSTICE: social + economic + political

→

Directive Principles and social-reform powers

→

LIBERTY: thought + expression + belief + faith + worship

→

rights, subject to constitutional limits

→

EQUALITY: status + opportunity

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• JUSTICE: social + economic + political • Directive Principles and social-reform powers • LIBERTY: thought + expression + belief + faith + worship	• rights, subject to constitutional limits • EQUALITY: status + opportunity • non-discrimination plus corrective measures	• FRATERNITY: dignity + unity and integrity • personal worth joined to common citizenship • BALANCE liberty without equality entrenches privilege	• equality without liberty risks coercion • fraternity sustains both as a shared constitutional project.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (JUSTICE): Preambular justice joins social, economic and political dimensions, using Fundamental Rights and Directive Principles to connect equal citizenship with distributive change.

04

STAGE 04

BERUBARI UNION (1960), KESAVANANDA BHARATI (1973) AND LIC OF INDIA (1995): LEGAL STATUS SETTLED

BERUBARI UNION (1960), KESAVANANDA BHARATI (1973) AND LIC OF INDIA (1995)

LEGAL STATUS SETTLED

BERUBARI UNION (1960)

PREAMBLE IS A KEY TO THE MAKERS' MINDS ADVISORY

KESAVANANDA BHARATI (1973)

PREAMBLE IS PART OF CONSTITUTION AMENDABLE UNDER ARTICLE 368

LIC OF INDIA (1995) REAFFIRMS PREAMBLE AS INTEGRAL TO

TWO LIMITS

BERUBARI UNION (1960)

→

Preamble is a key to the makers' minds advisory opinion did not regard it as

→

KESAVANANDA BHARATI (1973)

→

Preamble is part of Constitution amendable under Article 368 amendment cannot damage basic structure

→

LIC OF INDIA (1995) reaffirms Preamble as integral to Constitution

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• BERUBARI UNION (1960) • Preamble is a key to the makers' minds advisory opinion did not regard it as part of Constitution	• KESAVANANDA BHARATI (1973) • Preamble is part of Constitution amendable under Article 368 amendment cannot damage basic structure	• LIC OF INDIA (1995) reaffirms Preamble as integral to Constitution • TWO LIMITS	• No independent legislative power comes from Preamble. • No standalone directly enforceable right comes from Preamble.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LEGAL STATUS): The case-law movement is from Berubari Union (1960)'s interpretive key but exclusion, to Kesavananda Bharati (1973)'s membership, to LIC OF INDIA (1995)'s integral-part reaffirmation; the interpretive role survived while the exclusion did not.

05

STAGE 05

AMENDABILITY STOPS AT CONSTITUTIONAL IDENTITY

AMENDABILITY STOPS AT CONSTITUTIONAL IDENTITY

ARTICLE 368 REACHES PREAMBLE BECAUSE IT IS PART OF

42ND AMENDMENT VALIDLY ADDED THREE EXPRESSIONS

BUT AMENDING POWER IS LIMITED

BASIC-STRUCTURE TEST

DOES CHANGE ALTER WORDING WHILE PRESERVING CONSTITUTIONAL IDENTITY?

PERMISSIBLE AMENDMENT

DOES CHANGE DESTROY SOVEREIGNTY, DEMOCRACY, SECULARISM, REPUBLIC OR DIGNITY?

ARTICLE 368 reaches Preamble because it is part of Constitution

42nd Amendment validly added three expressions

→

BUT amending power is limited

→

BASIC-STRUCTURE TEST

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• ARTICLE 368 reaches Preamble because it is part of Constitution • 42nd Amendment validly added three expressions	• Does change alter wording while preserving constitutional identity? • permissible amendment	• CORRECT FORMULA • Preamble is amendable; its basic features are not abrogable.	• LIC OF INDIA (1995) reaffirmed that position.

PREAMBLE • TILE 2/5 • same master rows 2374-5608 of 12728 • continues below

05

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LEGAL STATUS): The case-law movement is from Berubari Union (1960)'s interpretive key but exclusion, to Kesavananda Bharati (1973)'s membership, to LIC OF INDIA (1995)'s integral-part reaffirmation; the interpretive role survived while the exclusion did not.

STAGE 05

AMENDABILITY STOPS AT CONSTITUTIONAL IDENTITY

AMENDABILITY STOPS AT CONSTITUTIONAL IDENTITYARTICLE 368 REACHES PREAMBLE BECAUSE IT IS PART OF42ND AMENDMENT VALIDLY ADDED THREE EXPRESSIONSBUT AMENDING POWER IS LIMITEDBASIC-STRUCTURE TESTDOES CHANGE ALTER WORDING WHILE PRESERVING CONSTITUTIONAL IDENTITY?PERMISSIBLE AMENDMENTDOES CHANGE DESTROY SOVEREIGNTY, DEMOCRACY, SECULARISM, REPUBLIC OR DIGNITY?

ARTICLE 368 reaches Preamble because it is part of Constitution

42nd Amendment validly added three expressionsBUT amending power is limitedBASIC-STRUCTURE TEST

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 368 reaches Preamble because it is part of Constitution42nd Amendment validly added three expressionsBUT amending power is limitedBASIC-STRUCTURE TEST

POWER / PROCEDURE

Does change alter wording while preserving constitutional identity?permissible amendmentDoes change destroy sovereignty, democracy, secularism, republic or dignity?invalid damage to basic structure

CHECK / LIMIT

CORRECT FORMULA
Preamble is amendable; its basic features are not abrogable.
CLOSE DISTINCTION: Berubari Union (1960) treated it as not part
Kesavananda Bharati (1973) held it part and amendable subject to basic structure

FEDERAL / RIGHTS IMPACT

LIC OF INDIA (1995) reaffirmed that position.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (AMENDABILITY): Article 368 reaches the Preamble, but basic structure prevents amendment from destroying the constitutional identity its words declare; the text has been amended only once, in 1976.

06

STAGE 06

HOW NON-JUSTICIABLE WORDS PRODUCE LEGAL FORCE

HOW NON-JUSTICIABLE WORDS PRODUCE LEGAL FORCEAMBIGUOUS CONSTITUTIONAL TEXTPREAMBLE IDENTIFIES PURPOSE, VALUE AND STRUCTURAL DIRECTION CHOOSE MEANINGDOCTRINAL USE INTERPRET RIGHTS AND INSTITUTIONAL POWERS IDENTIFY BASIC-STRUCTURESTOP RULECLEAR TEXT CANNOT BE REWRITTEN BY PREAMBLE ALONE.NO POWER, OFFENCE, TAX OR ENFORCEABLE CLAIM ARISES SOLELY

AMBIGUOUS CONSTITUTIONAL TEXTPreamble identifies purpose, value and structural direction choose meaning consistent withjustice, liberty and dignity reject reading defeating democratic or secular structureDOCTRINAL USE interpret rights and institutional powers identify basic-structure principles connect Parts III and IVSTOP RULE

CONSTITUTIONAL BASIS / ARTICLE

AMBIGUOUS CONSTITUTIONAL TEXT
Preamble identifies purpose, value and structural direction choose meaning consistent with

POWER / PROCEDURE

justice, liberty and dignity reject reading defeating democratic or secular structure
DOCTRINAL USE interpret rights and institutional powers identify basic-structure principles connect Parts III and IV

CHECK / LIMIT

STOP RULE
Clear text cannot be rewritten by Preamble alone.

FEDERAL / RIGHTS IMPACT

No power, offence, tax or enforceable claim arises solely from Preamble.
AMBIGUOUS CONSTITUTIONAL TEXT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (INTERPRETIVE FORCE): The Preamble has legal force through interpretation and basic-structure review, always through operative provisions and never as a substitute for them.

07

STAGE 07

PREAMBLE CLAIMS: PROBLEM AND PRECISE RESPONSE

PREAMBLE CLAIMSPROBLEM AND PRECISE RESPONSECLAIM PRECISE RESPONSE"MERE ORNAMENT" FALSEINTERPRETIVE AND STRUCTURAL FORCE"SOURCE OF ALL GOVERNMENT POWER" FALSEOPERATIVE PROVISIONS CONFER POWER"DIRECTLY ENFORCEABLE" FALSE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CLAIM PRECISE RESPONSE	"directly enforceable" false: values guide enforceable provisions	"Secular means strict separation" incomplete: equal respect plus reform regulation	Constitution in miniature, but not a miniature Constitution.
"mere ornament" false: interpretive and structural force	"unchangeable" false: Article 368 applies, basic structure limits	"Republic means direct democracy" false: concerns non-hereditary headship	
"source of all government power" false: operative provisions confer power	"Socialist means State ownership" too broad: democratic socialism is mixed	"integrity replaced unity" false: 42nd added integrity after unity	

CONSTITUTIONAL BASIS / ARTICLE

CLAIM PRECISE RESPONSE
"mere ornament" false: interpretive and structural force
"source of all government power" false: operative provisions confer power

POWER / PROCEDURE

"directly enforceable" false: values guide enforceable provisions
"unchangeable" false: Article 368 applies, basic structure limits
"Socialist means State ownership" too broad: democratic socialism is mixed

CHECK / LIMIT

"Secular means strict separation" incomplete: equal respect plus reform regulation
"Republic means direct democracy" false: concerns non-hereditary headship
"integrity replaced unity" false: 42nd added integrity after unity

FEDERAL / RIGHTS IMPACT

Constitution in miniature, but not a miniature Constitution.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (SOCIALIST): Indian socialism is democratic socialism: it constitutionalises a welfare and equality floor within a mixed economy, rather than prescribing State ownership or one immutable economic model.

08

STAGE 08

EXACT PYQ CONTROL: WORDING, OWNERSHIP AND ANSWER ROUTE

PREAMBLE • TILE 3/5 • same master rows 4747-7981 of 12728 • continues below

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CLAIM PRECISE RESPONSE	"directly enforceable" false: values guide enforceable provisions	"Secular means strict separation" incomplete: equal respect plus reform regulation	Constitution in miniature, but not a miniature Constitution.
"mere ornament" false: interpretive and structural force	"unchangeable" false: Article 368 applies, basic structure limits	"Republic means direct democracy" false: concerns non-hereditary headship	
"source of all government power" false: operative provisions confer power	"Socialist means State ownership" too broad: democratic socialism is mixed	"integrity replaced unity" false: 42nd added integrity after unity	
CONSTITUTIONAL BASIS / ARTICLE - CLAIM PRECISE RESPONSE "mere ornament" false: interpretive and structural force "source of all government power" false: operative provisions confer power	POWER / PROCEDURE "directly enforceable" false: values guide enforceable provisions "unchangeable" false: Article 368 applies, basic structure limits "Socialist means State ownership" too broad: democratic socialism is mixed	CHECK / LIMIT "Secular means strict separation" incomplete: equal respect plus reform regulation "Republic means direct democracy" false: concerns non-hereditary headship "integrity replaced unity" false: 42nd added integrity after unity	FEDERAL / RIGHTS IMPACT Constitution in miniature, but not a miniature Constitution.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (SOCIALIST): Indian socialism is democratic socialism: it constitutionalises a welfare and equality floor within a mixed economy, rather than prescribing State ownership or one immutable economic model.			

08

STAGE 08 EXACT PYQ CONTROL: WORDING, OWNERSHIP AND ANSWER ROUTE			
EXACT PYQ CONTROL	WORDING, OWNERSHIP AND ANSWER ROUTE	DIRECT OWNER	2020 GS-I Q16
PREAMBLE IS PART, BUT HAS NO LEGAL EFFECT INDEPENDENTLY (REASONED; NO LOCAL OFFICIAL KEY). ADJACENT PRELIMS 2021 GS-I Q93			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
DIRECT OWNER	ADJACENT PRELIMS	2019 GS-II Q5 (10/150): What can France learn from the Indian Constitution's approach to secularism? ONE-WAY answer only.	2025 GS-II Q11 (15/250): constitutional morality applied to judicial independence/accountability.
2020 GS-I Q16: Preamble is part, but has no legal effect independently of other parts → D (reasoned; no local official key).	2021 GS-I Q93: exact 26 Jan 1950 status = Sovereign Democratic Republic → B.	2021 GS-II Q1 (10/150): explain constitutional morality WITH relevant judicial decisions.	2025 GS-IV Q1(b) (10/150): public-service morality, governance and accountability.
	EXACT MAINS DEMANDS	2024 GS-II Q15 (15/250): India as secular State compared with US principles.	TRAP: never convert a cross-owned PYQ into an exclusive Preamble question or silently rewrite its demand.
CONSTITUTIONAL BASIS / ARTICLE - DIRECT OWNER 2020 GS-I Q16: Preamble is part, but has no legal effect independently of other parts → D (reasoned; no local official key).	POWER / PROCEDURE - ADJACENT PRELIMS 2021 GS-I Q93: exact 26 Jan 1950 status = Sovereign Democratic Republic → B. - EXACT MAINS DEMANDS	CHECK / LIMIT 2019 GS-II Q5 (10/150): What can France learn from the Indian Constitution's approach to secularism? ONE-WAY answer only. 2021 GS-II Q1 (10/150): explain constitutional morality WITH relevant judicial decisions. 2024 GS-II Q15 (15/250): India as secular State compared with US principles.	FEDERAL / RIGHTS IMPACT 2025 GS-II Q11 (15/250): constitutional morality applied to judicial independence/accountability. 2025 GS-IV Q1(b) (10/150): public-service morality, governance and accountability. - TRAP: never convert a cross-owned PYQ into an exclusive Preamble question or silently rewrite its demand.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: never convert a cross-owned PYQ into an exclusive Preamble question or silently rewrite its demand.			

09

STAGE 09 EXACT 10/15/20-MARK ARCHITECTURE: PREAMBLE AS IDENTITY AND INTERPRETIVE CONTROL			
EXACT 10/15/20-MARK ARCHITECTURE	PREAMBLE AS IDENTITY AND INTERPRETIVE CONTROL	10 MARKS	150 WORDS
KESAVANANDA BHARATI (1973) SHIFT.			
10 MARKS / 150 WORDS	1. Define Preamble as declaratory, identity-bearing and interpretive.	2. Decode people, State, objectives and enactment.	3. State Berubari Union (1960) → Kesavananda Bharati (1973) shift.
	4. Add no standalone power and no direct enforceability.		
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
10 MARKS / 150 WORDS 1. Define Preamble as declaratory, identity-bearing and interpretive. 2. Decode people, State, objectives and enactment. 3. State Berubari Union (1960) → Kesavananda Bharati (1973) shift. 4. Add no standalone power and no direct enforceability.	15 MARKS / 250 WORDS 1. Trace Objectives Resolution to 26 November 1949. 2. Explain popular sovereignty and five descriptors. 3. Analyse justice-liberty-equality-fraternity interdependence. 4. Use Berubari Union (1960), Kesavananda Bharati (1973) and LIC OF INDIA (1995).	6. Show interpretive force with one rights or federalism application. 7. Conclude: identity charter, not autonomous source of rules. 20 MARKS / 250 WORDS 1. Open with source, identity, objectives and enactment architecture. 2. Trace Objectives Resolution and exact five State descriptors.	4. Use Berubari Union (1960) → Kesavananda Bharati (1973) → LIC OF INDIA (1995) for status. 5. Separate membership, enforceability and source of power. 6. Apply Article 368/basic-structure boundary and Dr Balram Singh. 7. Add one criticism, reply and calibrated conclusion.
MECHANISM / VERDICT — 3. State Berubari Union (1960) → Kesavananda Bharati (1973) shift.			
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 7. Add one criticism, reply and calibrated conclusion.			

10

STAGE 10 CURRENT LEGAL CONTROL AND QUALIFIED SYNTHESIS			
CURRENT LEGAL CONTROL AND QUALIFIED SYNTHESIS	DR BALRAM SINGH (2024 INSC 893; 25 NOV 2024)	ARTICLE 368 REACHES THE PREAMBLE CHALLENGE TO SOCIALIST AND	FIVE DESCRIPTORS, NOT SIX
SOVEREIGN + SOCIALIST + SECULAR + DEMOCRATIC + REPUBLIC			
INTEGRITY BELONGS TO FRATERNITY'S OBJECTIVE	UNITY AND INTEGRITY OF THE NATION.	FINAL VERDICT	
DR BALRAM SINGH (2024 INSC 893; 25 NOV 2024)			

- 2. Decode people, State, objectives and enactment.
- 3. State Berubari Union (1960) → Kesavananda Bharati (1973) shift.
- 4. Add no standalone power and no direct enforceability.

- 2. Explain popular sovereignty and five descriptors.
- 3. Analyse justice-liberty-equality-fraternity interdependence.
- 4. Use Berubari Union (1960), Kesavananda Bharati (1973) and LIC OF INDIA (1995).

- 20 MARKS / 250 WORDS
- 1. Open with source, identity, objectives and enactment architecture.
- 2. Trace Objectives Resolution and exact five State descriptors.

- 5. Separate membership, enforceability and source of power.
- 6. Apply Article 368/basic-structure boundary and Dr Balram Singh.
- 7. Add one criticism, reply and calibrated conclusion.

MECHANISM / VERDICT — 3. State Berubari Union (1960) → Kesavananda Bharati (1973) shift.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 7. Add one criticism, reply and calibrated conclusion.

10

STAGE 10 **CURRENT LEGAL CONTROL AND QUALIFIED SYNTHESIS**

CURRENT LEGAL CONTROL AND QUALIFIED SYNTHESIS **DR BALRAM SINGH (2024 INSC 893; 25 NOV 2024)** **ARTICLE 368 REACHES THE PREAMBLE CHALLENGE TO SOCIALIST AND** **FIVE DESCRIPTORS, NOT SIX** **SOVEREIGN + SOCIALIST + SECULAR + DEMOCRATIC + REPUBLIC**

INTEGRITY BELONGS TO FRATERNITY'S OBJECTIVE **UNITY AND INTEGRITY OF THE NATION.** **FINAL VERDICT**

DR BALRAM SINGH (2024 INSC 893; 25 NOV 2024)

Article 368 reaches the Preamble challenge to Socialist and Secular dismissed → socialism does not prescribe one economic model secularism is equality-linked → FIVE DESCRIPTORS, NOT SIX

CONSTITUTIONAL BASIS / ARTICLE

- DR BALRAM SINGH (2024 INSC 893; 25 NOV 2024)
- Article 368 reaches the Preamble challenge to Socialist and Secular dismissed
- socialism does not prescribe one economic model secularism is equality-linked

POWER / PROCEDURE

- FIVE DESCRIPTORS, NOT SIX
- Sovereign + Socialist + Secular + Democratic + Republic
- Integrity belongs to fraternity's objective: unity and integrity of the Nation.

CHECK / LIMIT

- FINAL VERDICT
- The Preamble is constitutional text and an authoritative interpretive charter, but it creates no standalone power or enforceable claim.
- Its values work through operative provisions and basic-structure review.

FEDERAL / RIGHTS IMPACT

- FIVE DESCRIPTORS, NOT SIX

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (FINAL VERDICT): The Preamble is the Constitution in miniature: a non-justiciable but authoritative charter that identifies the source, identity and ends of the Republic and guides interpretation without displacing operative text.

11

STAGE 11 **2024 CURRENT-LAW CONTROL: SOCIALIST AND SECULAR REMAIN**

2024 CURRENT-LAW CONTROL **SOCIALIST AND SECULAR REMAIN** **42ND AMENDMENT 1976** **INSERTS SOCIALIST, SECULAR AND INTEGRITY** **RETROSPECTIVE INSERTION** **CONSTITUENT CHOICE OBJECTIONS** **BALRAM SINGH, 25 NOV 2024, 2024 INSC 893** **PETITIONS REJECTED**

42ND AMENDMENT 1976 → inserts SOCIALIST, SECULAR and INTEGRITY → CHALLENGE → retrospective insertion / constituent choice objections → BALRAM SINGH, 25 NOV 2024, 2024 INSC 893 → petitions rejected → HOLDING → Constitution is amendable/living, subject to constitutional limits → LIMIT → no standalone Preamble cause of action and no compulsory economic model.

CONSTITUTIONAL BASIS / ARTICLE

- 42ND AMENDMENT 1976 → inserts SOCIALIST, SECULAR and INTEGRITY
- CHALLENGE → retrospective insertion / constituent choice objections

POWER / PROCEDURE

- BALRAM SINGH, 25 NOV 2024, 2024 INSC 893 → petitions rejected
- HOLDING → Constitution is amendable/living, subject to constitutional limits

CHECK / LIMIT

- LIMIT → no standalone Preamble cause of action and no compulsory economic model.
- LEGAL/SOURCE LIMIT: Non-justiciable does not mean legally irrelevant, and the 25 November 2024

FEDERAL / RIGHTS IMPACT

- Balram Singh order upheld the 42nd-Amendment words without converting 'socialist' into one compulsory economic model.
- 42ND AMENDMENT 1976 → inserts SOCIALIST, SECULAR and INTEGRITY

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CURRENT LEGAL STATUS): Through 28 August 2026, the verified controlling position remains Dr Balram Singh (25 November 2024): 'socialist' and 'secular' stand, and no later official Supreme Court judgment or order altering that holding was located.

E

EXTRA **SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE**

OPTIONAL ADVANCED ENRICHMENT **21. ADVANCED - THE SOCIALISM DEBATE AFTER 1991** **22. ADVANCED - THE SECULARISM DEBATE AND THE COMPARATIVE** **23. ADVANCED - CONSTITUTIONAL MORALITY AS A PREAMBLE-DERIVED DOCTRINE** **24. ADVANCED - CRITICISMS OF THE PREAMBLE AND THE**

[FACT] BEFORE 1976 THE SOCIALIST CONTENT OF THE CONSTITUTION **[FACT] THE POLITICAL ANTECEDENT IS THE CONGRESS AVADI SESSION** **[FACT] THE JUDICIAL CHARACTERISATION IS DEMOCRATIC SOCIALISM - D.S.**

OPTIONAL DOCTRINE / CASE

- 21. Advanced - the socialism debate after 1991
- 22. Advanced - the secularism debate and the comparative frame
- 23. Advanced - constitutional morality as a Preamble-derived doctrine
- 24. Advanced - criticisms of the Preamble and the constitutional replies

ADVANCED LIMIT

- [FACT] Before 1976 the socialist content of the Constitution was carried implicitly by the Directive Principles ; the 42nd Amendment made it explicit.
- [FACT] The political antecedent is the Congress Avadi session, 1955 , which resolved on a "socialistic pattern of society".
- [FACT] The judicial characterisation is democratic socialism - D.S.
- D.S. Nakara (1982) called it a blend of Marxism and Gandhism leaning heavily towards Gandhian socialism

COMPARATIVE NUANCE

- G.B.
- G.B. Pant University (2000) defined its aim as ending poverty, ignorance, disease and inequality of opportunity.
- [FACT] The New Economic Policy, 1991 diluted the socialist credentials of the Indian State.
- [FACT] Excel Wear (1978) had observed that the presence of the word may make courts lean more

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.